

23NWCV01916 23NWCV01916

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Case Number: 23NWCV01916 Hearing Date: September 17, 2026 Dept: P

NOEMI MONROY-ROMAN v. ROSITA GENERO, ET AL.

CASE NO.: 23NWCV01916

HEARING: 9/17/2026 @ 9:30 AM

#10

TENTATIVE ORDER

Plaintiff Noemi Monroy-Roman's motion to compel further deposition and production of documents of Defendant Auto Company XXIII's PMQ is GRANTED IN PART and MOOT IN PART.

Moving party to give notice.

Plaintiff Noemi Monroy-Roman (Plaintiff) moves to compel further deposition and production of documents of Defendant Auto Company XXIII dba Autonation Chrysler Dodge Jeep Ram Valencia's (Defendant) person most qualified (PMQ).

Background

Plaintiffs and Yeizon Rodriguez filed this action against Defendants Rosita Genero and Diego Genero on June 22, 2023 and Does 1 to 50. The complaint alleges that on or about October 21, 2022, Plaintiffs were travelling Northbound on I-710 approaching Frontage Road and Miller Way when Defendant Rosita Genero, driving behind Plaintiffs, struck Plaintiffs' vehicle from

behind, resulting in injuries. (Complaint, ¶¶ 8-9.) The complaint asserts two causes of action against all defendants: (1) negligence and (2) negligence per se.

On December 6, 2024, Plaintiffs requested dismissal without prejudice as to Defendant Diego Genero. On the same date, Defendant Diego Genero was dismissed without prejudice.

On May 5, 2025, Plaintiffs filed two Amendments to Complaint replacing Doe 1 with Autonation.com, Inc and Doe 2 with Autonation, Inc.

On March 5, 2026, the Court heard and took Plaintiff's motion to compel Defendant to produce its PMQ for deposition off calendar as moot after the parties failed to meet and confer. (Order, 3/5/26.)

On August 11, 2026, the Court held an Informal Discovery Conference (IDC) at Plaintiffs' request regarding the issues raised by the instant motion.

On August 14, 2026, when this motion first came on for hearing, the Court continued the hearing to allow the parties more time to work toward an informal resolution based on the Court's guidance at the IDC. The Court requested further briefing or declarations regarding any updates following the IDC.

On September 1, 2026, this motion came on for hearing again. At the time of the hearing, the Court was not in receipt of any filings. The Court continued the motion again to today's date and ordered the parties to file briefing.

On August 31, 2026, Defendant filed a declaration. The Court was not in receipt of the declaration at the September 1, 2026 hearing.

On September 14, 2026, Plaintiff filed a declaration.

Legal Standard

Under Code of Civil Procedure section 2025.450, subdivision (a), a party may move to compel a deponent's attendance and production for inspection of documents if after serving the deposition notice the responding

party fails to serve valid objections and fails to appear for the deposition or produce any document described in the deposition notice. A motion under Code of Civil Procedure section 2025.450, subdivision (a) must (1) provide specific facts showing good cause justifying the production for inspection of any document and (2) be accompanied by a meet and confer declaration. (Code Civ. Proc., § 2025.450, subd. (b).) Further deposition may be taken of a "person [who] was examined as a result of that person's designation to testify on behalf of an organization under Section 2025.230." (Code Civ. Proc., § 2025.610, subd. (c)(1).)

Discussion

Plaintiffs move to compel Defendant to produce its PMQ for further deposition and further production of documents. Plaintiffs argue that Defendant refuses to produce a PMQ for deposition as to Defendant's employee and whether the employee was in the course and scope of her employment during the subject incident.

Following the IDC, the Court ordered the parties to apprise the Court of what remains at issue in this motion. Defendant filed a declaration attesting to the following: "As discussed at the IDC and proven over and over, Genero was not in the course [sic] and scope of her employment with CDJR at the time of the Subject Accident. Accordingly, CDJR has produced all documents that the Parties and the Court discussed at the IDC." (Crosby Decl., ¶ 7.) Defendant proceeds to list the documents it produced, which Defendant attests are the documents the Court discussed with the parties at the IDC. (Crosby Decl., ¶ 8.) Defendant produced:

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The Declaration of Natalie Huerta;

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The Declaration of Anthony Quartarone;

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Time sheets for all of CDJR's employees that attended the training on the date of the Subject Accident, October 21, 2022. Including Defendant Rosita Genero, Mario Anleu, and Gonzalo Gomez;

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Training transcript reports for all CDJR employees that attended the training on the date of the Subject Accident, October 21, 2022, showing the date that the employees returned to CDJR following the training—October 24, 2022;

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Intraoffice personnel records for all the CDJR employees that attended the training on the date of the Subject Accident; albeit, redacted due to confidentiality and privacy rights.

(Crosby Decl., ¶ 6.)

In Plaintiffs' declaration, filed on September 14, 2026, Plaintiffs acknowledge that Defendant has supplemented certain documents. Plaintiffs claim two issues are pending. First, is "unredacted versions of documentation [Defendant] provided in advance of the June 15, 2026 deposition of its person most qualified James Garwick. Such documentation includes redacted copies of emails dated October 14, 2022 and during the week of October 17, 2022, sent to training attendees and Defendant's staff. Defendant redacted these emails' senders and receivers and signature lines, thus obfuscating relevant identities." (Rofael Decl., ¶ 6.)

Second, Plaintiffs claim the following is pending: "Defendant CDJR has not provided all relevant documentation pertaining to the training sessions Defendant Genero attended. For instance, schedules of the training sessions were not provided, and these may indicate whether trainees were supposed to travel to auto dealerships on the incident date of October 21, 2022, as Defendant Genero alleged in her deposition testimony and verified discovery responses." (Rofael Decl., ¶ 9.) The Court notes that Plaintiffs do not apprise the Court as to which category of examination or document requests the supplemental production or pending requests correspond to. Therefore, the Court finds the motion moot as to issues not raised in the supplemental declaration.

Plaintiffs state that "[t]he emails' senders and receivers would enable Plaintiffs to determine who coordinated the training sessions from which Defendant Genero departed, at Defendant CDJR's direction, to its Valencia facility. It was during this trip that the subject incident occurred." (Rofael Decl., ¶ 6.) Plaintiffs contend that two declarations by two employees is not sufficient as they are individuals under Defendant's employ.

A request for production of documents in a deposition notice need only specify with reasonable particularity the materials or category of materials to be produced by the deponent. (Code Civ. Proc., § 2025.220, subd. (a)(4).) Where production of documents is sought in connection with the deposition, the motion must set forth specific facts showing good cause justifying the production. (Code Civ. Proc., § 2025.450 subd. (b)(1).) These facts must also be set forth in a separate statement filed by the moving party. (Cal. Rules of Court, rule 3.1345(a)(5).) This burden “is met simply by a fact-specific showing of relevance.” (TBG Ins. Servs. Corp. v. Superior Court (2002) 96 Cal.App.4th 443, 448.)

Here, based on the discussions from the IDC, Defendant has properly submitted the names and contact information of people who were present at the orientation on the date of the incident and the transcript reports of its employees who attended the training, which show the date that the employees returned to Defendant. (See Crosby Decl., ¶ 6.) Following the IDC, Plaintiffs establish that the two pending document production requests, the unredacted emails from that orientation week and schedule indicating whether trainees were going to auto dealerships on the subject orientation date, are relevant to whether Genero was in the scope of her employment with Defendant. Defendant has not submitted a written opposition to support its objections. To the extent that Defendant does not possess the requested documents as represented in its declaration, Defendant can assert such points in its further discovery responses.

Based on the foregoing, Defendant is ORDERED to produce further documents to the two requests for production, the unredacted emails from the relevant orientation week and schedules indicating whether trainees were going to auto dealerships on the subject orientation date, within 20 days of this Order. This date may be extended pursuant to agreement between the parties.

The rest of the motion is MOOT pursuant to the supplemental production.

Sanctions

Based on the IDC and delay in apprising the Court of the remaining issues, the Court declines to award monetary sanctions.